

Themis

Bar Review

CALIFORNIA ESSAY WRITING WORKSHOP

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CHAPTER 1: INTRODUCTION

Editorial Note 1: The Essay Writing Workshops are primarily focused on essay-writing strategies. Although Professor Ide-Don reviews some of the most frequently tested rules in each lecture, you should refer to the substantive lectures for those topics for a more thorough discussion of the rules.

A. Bar Exam Basics

	Day 1 (Tuesday)	Day 2 (Wednesday)
AM	3 Essays (1 hour each)	100 MBE Questions (3 hours)
PM	2 Essays (1 hour each) 1 Performance Test (90 minutes)	100 MBE Questions (3 hours)

B. Overall Scoring

Essays – 36%	Performance Test (PT) – 14%	MBE – 50%
5 essays x <u>100 points per essay</u> 500 total points possible	1 PT x <u>200 points</u> 200 total points possible	200 MBE Questions 175 scored & 25 experimental

1. Essay Subjects

Civil Procedure (FRCP & CA)

Constitutional Law

Contracts

Criminal Law

Criminal Procedure

Evidence (FRE & CA)

Real Property

Torts

Business Associations

Community Property

Professional Responsibility (ABA & CA)

Remedies

Trusts

Wills (CA)

2. Written Exam Scoring

- Written portion of the California Bar Exam is 50% of your score.
 - Total raw points you can score on the written portion is 700 points.

- 5 essay questions (500 points) and 1 performance test question (200 points).
- Each essay question is worth 100 points (5 x 100) for a total of 500 points.
- Performance test is graded on a 100-point scale, and then your score is doubled.

Example 1: *Performance Test score = 65 out of 100 x 2 = 130 out of 200 points.*

Exam Tip 1: Game your bar exam! Anticipate a Professional Responsibility essay (100 points) and a performance test (200 points). That's 300 points you are guaranteed to get on your written exam. That just leaves 400 points!

- Scores typically range from 50 to 80 points.
- Aim to average between a 61-62 on the essays to pass.
- Resources:
 - Themis essay bank
 - California Bar Exam Official Sample Answers
 - Other databases

3. Multiple-Choice Exam Scoring

- 200 multiple choice questions (175 are graded and 25 are pre-test questions)
- 64 – 66% correct = on track to pass

4. Overall Exam Score

- 50% Written + 50% Multiple Choice
- Your overall score determines whether you pass – you can “pass” one part and “fail” the other part and still pass the overall exam.

C. The Overall Bar Study Experience

- A marathon, not a sprint!
- Study 7 – 10 hours a day, *consistency is the key*
- Daily schedule: lecture; review law; practice or *flip the day*
- Merge the processes of practice and review
- Do the work – Completion = Passing

CHAPTER 2: STRATEGIES FOR THE ESSAY EXAM

A. Practice

- On your first essay (or the first essay of an unfamiliar subject) consider answering the question open book and untimed
- Work toward answering the essays closed book and timed under exam conditions

B. Organization

1. IRAC (Issue, Rule, Analysis, Conclusion)

2. IRA(irac)C

a. Issue

b. Rule

c. Analysis

1) Sub-issue 1 (element #1)

2) Sub-rule 1

3) Analysis

4) Conclusion

1) Sub-issue 2 (element #2)

2) Sub-rule 2

3) Analysis

4) Conclusion

1) Sub-issue 3 (element #3)

2) Sub-rule 3

3) Analysis

4) Conclusion

d. Conclusion

3. Example of IRA(irac)C

a. **Issue:** Negligence

b. **Rule:** Duty, Breach, Causation, Damages

c. **Analysis:**

1) Sub-issue #1: Duty

2) Sub-rule: Reasonable person

3) Analysis: Facts from the question

4) Conclusion

1) Sub-issue #2: Breach

2) Sub-rule: Failure to act as a reasonable person

3) Analysis: Facts from the question

4) Conclusion

1) Sub-issue #3: Causation

a) Sub-issue: Actual Cause

b) Sub-rule: "But for" D's actions...

c) Analysis: Facts from the question

d) Conclusion

a) Sub-issue: Proximate Cause

b) Sub-rule: D's actions were a foreseeable cause of P's injuries

c) Analysis: Facts from the question

d) Conclusion

- 1) Sub-issue #4: Damages
- 2) Sub-rule: P suffered actual damages
- 3) Analysis: Facts from the question
- 4) Conclusion

d. **Conclusion** (for entire Negligence issue)

C. Pre-Writing / Planning

1. **Read the call of the question** to know the subject area
2. **Read through the fact pattern** twice
3. **Outline** the answer (about 15 minutes)
 - Make note of the major issues
 - Decide the order of the issues
 - Determine the importance of each issue
 - The more facts provided per issue, the more important it is
 - Ambiguous facts might mean the issue is worth more points

D. Issue Spotting

- **Every fact is relevant** on the bar exam (unlike law school exams)
- Make note of issues that you spot immediately
- Take a moment to consider the area of law and decide whether there are other issues that might be important to discuss

***Example 2:** In a Contracts essay, you may have addressed contract validity, but not the applicable law.*

***Example 3:** In a Torts essay, you may have discussed negligence but forgot to discuss defenses.*

- Use headings

E. Rule Statements

- Memorizing every exact rule statement is not as important as learning to issue spot and analyze.
- Running out of time—stop writing the rule
 - Write the issue and go straight to the analysis (only if short on time!)
- You forget the rule—create a rule that seems reasonable
 - Use the rule in your analysis to earn some of the available points
 - Two fall back rules: reasonable person or balancing the equities

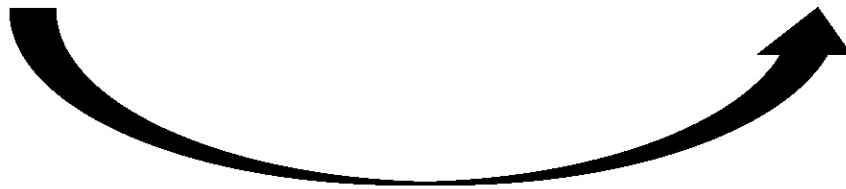
F. Analysis

- Using the facts from the pattern and explaining how the facts interact with the law

- The graders are looking for exact facts from the pattern, use quotes if appropriate
- Argue both sides when there are facts or law to support counter-arguments
 - Passing answers can reach different conclusions
- Merely stating the facts is not sufficient; ask “so what?”

Example 4: *Plaintiff did not lock up his gun. So...what? This is a fact, not analysis.*
- Explain why the fact is relevant to this particular rule
- Practice the analysis!

FACTS → ISSUE → RULE → ANALYSIS



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California Essay Exam – Subject Frequency Chart

Please note: if an essay question tested more than one subject, the question is entered in both subject categories below. For example, if a question tested Business Associations and Professional Responsibility, both subjects are marked in the chart.

Subjects	Percent Tested	Frequency	Feb 2022	July 2021	Feb 2021	Oct 2020	Feb 2020	July 2019	Feb 2019	July 2018	Feb 2018	July 2017
Agency	10%	1					5					
Civil Procedure	40%	4		1				1	4			4
Community Property	70%	7	2	5	3				1	4	5	1
Constitutional Law	30%	3						2		5	2	
Contracts	70%	7			2	5	3	5		1	1	3
Corporations	30%	3	5			2	5					
Criminal Law	40%	4	1			4		3			4	
Criminal Procedure	50%	5	1	4		4		3			4	
Evidence	60%	6	4		1		4		4	2		2
Partnerships	20%	2	5				5					
Professional Responsibility	100%	10	4	2	4	1	2	4	5	3	1	2
Real Property	40%	4			5	3			3		3	
Remedies	50%	5	3		2	5	2					3
Torts	60%	6	3, 5	3			1		2		3	5
Trusts	10%	1							1			
Wills and Successions	30%	3		5					1		5	

CHAPTER 3: TORTS PRACTICE QUESTION

A. Question: July 2006, Question 1

After paying for his gasoline at Delta Gas, Paul decided to buy two 75-cent candy bars. The Delta Gas store clerk, Clerk, was talking on the telephone, so Paul tossed \$1.50 on the counter, pocketed the candy, and headed out. Clerk saw Paul pocket the candy, but had not seen Paul toss down the money. Clerk yelled, "Come back here, thief!" Paul said, "I paid. Look on the counter." Clerk replied, "I've got your license number, and I'm going to call the cops." Paul stopped. He did not want trouble with the police. Clerk told Paul to follow him into the back room to wait for Mark, the store manager, and Paul complied. Clerk closed, but did not lock, the only door to the windowless back room.

Clerk paged Mark, who arrived approximately 25 minutes later and found Paul unconscious in the back room as a result of carbon monoxide poisoning. Mark had been running the engine of his personal truck in the garage adjacent to the back room. When he left to run an errand, he closed the garage, forgot to shut off the engine, and highly toxic carbon monoxide from the exhaust of the running truck had leaked into the seldom-used back room. Mark attributed his forgetfulness to his medication, which is known to impair short-term memory.

Paul survived but continues to suffer headaches as a result of the carbon monoxide poisoning. He recalls that, while in the back room, he heard a running engine and felt ill before passing out.

A state statute provides: "No person driving or in charge of a motor vehicle shall permit it to stand unattended without first stopping the engine, locking the ignition, removing the key from the ignition, setting the brake thereon and, when standing upon any perceptible grade, turning the front wheels to the curb or side of the highway."

1. Can Paul maintain tort claims against (a) Clerk for false imprisonment and (b) Mark for negligence? Discuss.
2. Is Delta Gas liable for the acts of (a) Clerk and (b) Mark? Discuss.

B. Issues Checklist

1. P's tort claims against C and M

a. P v. C

- 1) False Imprisonment
- 2) Defenses
 - a) Consent
 - b) Shopkeeper's Privilege

b. P v. M

- 1) Negligence
 - a) Duty
 - i) To whom the duty is owed
 - ii) Standard of care
 - b) Breach
 - i) Negligence per se
 - c) Causation
 - i) Actual cause
 - ii) Proximate cause
 - d) Damages
- 2) Defenses

2. Vicarious liability of DG

a. Vicarious Liability

C. IRAC Charts

Editorial Note 2: Professor Ide-Don only discusses the first issue here, but charts for each issue and the entire sample answer are included for your reference.

1. Issue: False Imprisonment

RULE	FACTS/ANALYSIS
Act/omission	- Ordering P back to room to wait - Closing but not locking door to windowless room is an act
Confine/restrain	Didn't restrain P but confined him to back room
Bounded area	Windowless room, closed door
Intent	C didn't lock door, but what about words/threats?
No reasonable means of escape	Door was unlocked, but is that reasonable means of escape?
Consent	- P willingly went to back room to wait for manager - But P didn't want trouble with the police and C had his license number
Shopkeeper's privilege	- Is 25 minutes a reasonable time? - Reasonable mistake to not see money thrown on counter while on phone?

2. Issue: Negligence

RULE	FACTS/ANALYSIS
Duty : - Cardozo—w/in foreseeable zone of danger - Andrews—liable to all	Foreseeable that back room would be used and carbon monoxide from adjacent room could leak into it?
Standard of care—invitee	Mark had duty to warn P and make safe any dangerous condition
Breach: - Reasonably prudent person - Negligence per se	- Should M know leaving car running for 25 mins is dangerous & know side effects of medication? - Statute doesn't apply b/c type of harm (rolling cars) not at issue here

RULE	FACTS/ANALYSIS
Actual cause—cause in fact (“but for”)	• But for M leaving engine running, P would not have suffered carbon monoxide poisoning • C put P in the back room, but M’s act was substantial factor causing injury
Proximate cause—legal cause (w/in foreseeable zone of danger & caused by D’s unreasonable conduct)	• Foreseeable that P would be in back room? • Leaving car running in closed garage unreasonable • Foreseeable that car exhaust/carbon monoxide would leak into adjoining back room
P’s Damages • Actual injury • Duty to Mitigate	• P fell unconscious from CM poisoning • Headaches • Duty to mitigate by leaving the room but CM is odorless • Perhaps P should have left room after feeling ill but before passing out, but could be due to anxiety or he didn’t have enough time

3. Issue: Vicarious Liability

RULE	FACTS/ANALYSIS
Respondeat Superior (assuming M & C are employees) Employer liable for tortious conduct of employee w/in scope of employment Not liable for Intentional Torts, if beyond scope If employer authorizes employee to act on his behalf, may be liable	<i>Clerk</i> • C working when he stopped P • Didn’t appear to exceed scope of gas station cashier • Acted in benefit of DG • DG probably liable <i>Mark</i> • M running errand so not working at the time • Not acting for benefit of DG • DG not liable
Independent contractor—employers generally not liable	• No non-delegable duty or inherently dangerous activity at a gas station so DG not liable here

D. Sample Answer

I(A). PAUL (P) V. Clerk (C)

False Imprisonment *[Issue]*

False imprisonment results when a person acts: (i) intending to confine or restrain another within boundaries fixed by the actor; (ii) those actions directly or indirectly result in such confinement; and (iii) the other is conscious of the confinement or is harmed by it. An area is not bounded if there is a reasonable means of escape. *[Rule]*

[Note the use of the exact facts in this paragraph.] In this case, it is necessary to analyze C's actions to determine if and when the intentional tort of false imprisonment occurred. First, **C called P a thief and ordered him to return to the store after he saw P pocket the candy.** This act on its own does not constitute false imprisonment. Next, **C told P that he had his license plate number, and threatened to call the cops.** Although C was threatening P here, he still had not confined P to a bounded area. **C ordered P to follow him to the back room to wait for the store manager. P followed to avoid trouble with the police. C then closed, but did not lock, the only door to the windowless back room.** At this point, C demonstrated his intent to confine P by ordering him to wait in the back room in conjunction with his threats to call the police. The confinement was a direct result of C's actions, and the back room constitutes a bounded area because **there were no windows and only one door.** *[Analysis]*

C will argue that he did not intend to confine P because **he did not lock the door**, which was a reasonable means of escape. P will counter that the door did not need to be locked. C had **accused P of being a thief, took down his license number, and threatened to call the police.** These threats sufficed to restrain P to the back room out of fear that if he did leave there would be problems with the police. Finally, damages need not be proven because P was aware of his confinement. *[Analysis] (Counter-argument)*

Thus, P can maintain a successful claim of false imprisonment against C, subject to the defenses discussed below. *[Conclusion]*

Defenses

Consent

Consent is a defense to false imprisonment if the plaintiff, by words or actions, manifests the willingness to submit to the defendant's conduct. Here, C will point out that P voluntarily went to the back room, and that it is common practice for an accused shoplifter to wait for a store official to clear his name. P will state *[Note the counter-argument here by P.]* that his consent was not voluntarily given because it was obtained through duress. If P can prove that C's threats to contact the police rendered his consent involuntary, he may still succeed on a claim of false imprisonment.

However, C has a strong argument that P gave voluntary consent despite the threat of police involvement. Even if C had called the police, P could simply have explained that C was on the phone, and shown them the money he left on the counter. Also, most gas stations are equipped with security cameras, so P could have easily proven his innocence.

Shopkeeper's Privilege

A shopkeeper's reasonable (in both duration and manner) detention of a suspected shoplifter is not an invalid use of authority and hence is not a false imprisonment.

Here, C had probable cause to suspect P of shoplifting because P walked out of the store with two candy bars in his pocket, and C did not see his payment on the counter. Clerk will argue that 25 minutes was a reasonable amount of time to detain P, and that it is not commonly accepted practice to simply throw money on the counter and then walk out of the store when a store clerk is on the phone. P will counter *[Counter-argument.]* that 25 minutes was an unreasonable amount of time to be left completely alone, and that C did not have probable cause because P told C to look on the counter for his payment after he was accused of shoplifting. The facts do not state whether or not C looked on the counter, but even if he did, he may have wanted to wait for the store manager to resolve the dispute at that point. Furthermore, P should have waited for C to get off the phone and receive confirmation of his payment before leaving, so C's mistake was reasonable. However, if a court determines that 25 minutes was an unreasonable amount of time to detain P, then C will not be able to use the shopkeeper's privilege.

A court will likely find that there was a valid claim for false imprisonment, but that the shopkeeper's privilege exonerates C of wrongdoing.

I(B). P V. MARK (M)

Negligence

Negligence is conduct without wrongful intent that falls below the minimum degree of ordinary care imposed by law to protect others against unreasonable risk of harm. A prima facie case for negligence consists of four elements: (i) duty; (ii) breach; (iii) causation; and (iv) damages.

[Negligence should always be broken into separate IRAC's for each element.]

Duty

An analysis of duty requires an examination of to whom the duty is owed and what the duty entails (otherwise known as the standard of care).

To whom the duty is owed

The majority rule (the "Cardozo view") is that a duty of care is owed to the plaintiff only if she is a member of the class of persons who might be foreseeably harmed as a result of the defendant's negligent conduct. This means a defendant is liable for negligence only to those plaintiffs who are "within the zone of foreseeable harm." The minority view (the "Andrews view") states that if the defendant can foresee harm to anyone as a result of his negligence, then a duty is owed to everyone (foreseeable or not) injured as a result of his breach.

Here, P is within the zone of foreseeable harm because he was in the back room of the store, which was adjacent to the garage. M will argue that the back room was seldom used. This will not work as it is foreseeable that at some point a person would be in the room for the very reason P was in this case. It is also foreseeable that leaving an engine running in a closed garage would lead to carbon monoxide leaking into an adjacent room.

As such, under both the majority and minority rules, M owed a duty of care to P.

Standard of care

In most cases, the standard of care imposed is that of a reasonably prudent person as measured by an objective standard. However, owners or possessors of land owe a duty to protect people on their premises. While the modern trend is a duty of reasonable care under the circumstances, under traditional rules the standard of care depends on the category of individual to which the person on the land belongs: trespasser, licensee, or invitee. A trespasser is one who enters or remains on the land without consent or privilege to do so. A licensee is someone who enters the land of another with the express permission of the possessor (e.g., social guests, emergency personnel, etc.). An invitee is someone invited to enter or remain on the land for a purpose connected to business dealings with the possessor of the land.

M, the store manager, was the possessor of Delta Gas, and P was invited to the store for the purpose of buying gas and sundries, which is a purpose connected to business dealings with the possessor of the land. This relationship makes P an invitee. A land possessor owes an invitee the duty of reasonable care, including the duty to use reasonable care to inspect the property, discover unreasonably dangerous conditions, and protect the invitee from them. M had a duty to warn and make safe any dangerous conditions on Delta Gas property.

Breach

Defendant will be in breach of his duty to plaintiff if he fails to meet the applicable standard of care. Here, M breached his duty to P because a reasonably prudent person would not leave his engine running for 25 minutes in a closed garage while he ran errands. It is widely known that exhaust from a running car can easily lead to carbon monoxide poisoning when in an enclosed area. M may try to argue that he did not breach his duty because his forgetfulness was caused by his medication, which is known to impair short-term memory. This argument will fail, however, because a reasonably prudent person would know about the side effects of his medication, and take extra precautions to compensate for the memory loss. As a land possessor, M also had a duty to make safe any dangerous conditions, and he failed to do so by allowing P to suffer from carbon monoxide poisoning on the Delta Gas premises.

Negligence per se

[If there is a statute, you should always discuss Negligence Per Se as an alternative theory for Duty and Breach.]

P can also argue that M breached his duty under a theory of negligence per se. When a statute or administrative regulation defines the standard of reasonable conduct, that standard supersedes common law standards. The plaintiff may establish duty and breach by proving that: (i) he was in the class of people intended to be protected by the statute; (ii) the harm was of the type intended to be protected; and (iii) the harm was proximately caused by defendant's violation of the statute.

The state statute in this case provides that no person should leave his car unattended unless he turns off the engine, locks and removes the key from the ignition, sets the brake, and curbs the wheels when parked on a hill. P will have trouble showing that he was in the class of people intended to be protected by the statute, because it appears to be in place for the benefit of nearby pedestrians and cars. Although the statute mentions that an unattended car should not be left with the engine running, the type of harm intended to be protected against is not carbon monoxide poisoning. The statute is designed to prevent vehicles from rolling and causing accidents when left unattended on a hill.

P cannot establish that M breached his duty on the basis of the state statute.

Causation

The plaintiff must prove that the defendant's actions were both the actual cause and proximate cause of his injury.

Actual cause

If the plaintiff's injury would not have occurred but for the defendant's tortious acts, then the defendant's conduct is the actual cause of the harm. If there is more than one actual cause, the defendant is the actual cause of the injury when the defendant's conduct was a substantial factor in causing the damages.

But for M leaving his engine running, P would not have suffered from carbon monoxide poisoning. M will argue that C's tort of false imprisonment was the cause-in-fact, and that P would not have been in injured but for C's actions. However, this argument is weak because M's conduct was a substantial factor in causing the carbon monoxide poisoning.

Thus, M's actions were an actual cause of P's injury.

Proximate cause

To prove proximate causation, the plaintiff must show that her injuries were the foreseeable result of the defendant's conduct.

As discussed above, P was within the foreseeable zone of danger in the back room, and it was unreasonable for M to leave his engine running in a closed garage due to the risk of carbon monoxide poisoning. It is also foreseeable that engine exhaust from the enclosed garage would leak into the adjoining room, which is what caused P to suffer from carbon monoxide poisoning.

[Look for intervening causes on the bar exam. The bar examiners expect you to discuss every possible intervening force.] M will argue that he is not the proximate cause of P's injury for two reasons. First, he will point out that C put P in the back room, and second, his medication caused short-term memory loss. However, it is foreseeable that C might make someone wait in the back room, and it is foreseeable that medication causing memory loss would lead to M forgetting to turn off his engine. These are foreseeable intervening forces that will not supersede his negligence, so M remains liable for the harm to P.

M's actions were also the proximate cause of P's injury.

Damages

The plaintiff must prove actual injury, and has a duty to take reasonable steps to mitigate damages. Failure to mitigate damages precludes recovery of any additional harm caused by aggravation of the injury.

Here, Paul fell unconscious from the carbon monoxide poisoning, and continues to suffer from headaches, so he suffered actual injury. Mark will point out that Paul had a duty to mitigate his injury, and he should have left the back room when he heard a running engine and felt ill before passing out. Paul will argue that carbon monoxide is odorless, so he would not have known to leave the room until he heard the engine running and felt ill. If Paul had time between feeling ill and passing out, he should have left the room. However, if Paul was physically unable to leave the room before passing out, then he will not be precluded from recovering for additional damages caused by aggravation of the carbon monoxide poisoning.

Defenses *[Always mention the defenses of Contributory Negligence and Assumption of the Risk.]*

Carbon monoxide is odorless, so P could not have been contributorily negligent by not leaving the back room since he didn't know what was happening to him.

Further, he did not voluntarily assume the risk of being in a room filled with carbon monoxide.

II. VICARIOUS LIABILITY OF DELTA GAS

Vicarious liability is a form of strict liability in which one person is liable for the tortious actions of another. It arises when one person has the right, ability, or duty to control the activities of another, even though the first person was not directly responsible for the injury.

As a general rule, an employer is vicariously liable for the tortious conduct of an employee that is within the scope of employment. Those who hire independent contractors, however, are generally not vicariously liable for the torts of the independent contractor. The facts do not state whether M and C are employees of Delta Gas. If they are employees, then DG will be vicariously liable for acts committed within the scope of employment.

Clerk

An employer may be liable for the intentional tort of an employee. For example, when force is inherent in the employee's work. If an employee's intentional tort is beyond the scope of employment the employer will not be liable.

In this case, C was acting within the scope of employment because he was working when he apprehended P, and part of his job is to make sure that customers pay for Delta Gas merchandise. C did not appear to exceed his scope of employment, since he simply apprehended P, and then asked him to wait while he paged the store manager. C was acting for the benefit of Delta Gas, and it can be implied that he was authorized to act on DG's behalf to stop shoplifters. Finally, C's position as cashier provided him with the opportunity to commit a tort against P, so Delta Gas may be held vicariously liable for C's tortious conduct.

It is likely a court would find that C was acting within the scope of his employment when he committed the intentional tort of false imprisonment against P, so Delta Gas will be vicariously liable if the defenses discussed above are ineffective.

Mark

M's tort did not appear to occur within the scope of his employment for Delta Gas, since the facts state that he was running an errand when he left the engine running. M was not acting for the benefit of Delta Gas by running a personal errand, and he left the engine running on his personal truck, not a company car. The facts do not state whether the garage was owned or under the control of Delta Gas, but since it does not appear that M was acting within the scope of employment, Delta Gas will not be vicariously liable for M's tortious conduct.

Independent Contractor

Employers are generally not vicariously liable for the torts of independent contractors. If M and C are independent contractors of Delta Gas, then Delta Gas will not be vicariously liable for their tortious acts.

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